

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, MAY 5, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, May 5, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, May 4, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at 8:30 a.m. in **Department 42**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0086829 Discover Bank v. Rai, Diljoyt

Motion for Leave to Amend Complaint to Change Plaintiff Name Due to Merger

Plaintiff requests to amend its name to Capital One, N.A., as successor by merger to Discover Bank. Defendant has appeared in this action. The court grants plaintiff's unopposed motion for leave to amend the complaint to change plaintiff's name due to merger. Plaintiff's first amended complaint shall be deemed filed and served, and defendant's answer shall be deemed filed and served as to the first amended complaint. Plaintiff's name is amended to **Capital One, N.A., successor by merger to Discover Bank**.

2. M-CV-0092493 Wells Fargo Bank v. Santiago, Jazz

Motion to deem admitted plaintiff's requests for admissions, set one

Plaintiff moves to deem admitted plaintiff's requests for admissions, set one.

Section 2033.280 of the California Code of Civil Procedure states "[i]f a party to whom requests for admission are directed fails to serve a timely response... (b) [t]he requesting party may move for an order that the genuineness of any documents and the

truth of any matters specified in the requests be deemed admitted.” Unless the responding party serves responses, without objection and complies with the requirements set forth in Section 2033.220, prior to the hearing, [i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2033.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.) Code Civ. Proc., § 2033.280 (c).

Defendant did not file an opposition.

Plaintiff’s unopposed motion to deem admitted plaintiff’s requests for admissions, set one, is granted. (Code Civ. Proc., § 2033.280 (b).) Defendant is deemed to have admitted the matters set forth in plaintiff’s requests for admissions, set one.

3. M-CV-0096457 D'Amico, Amanda v. Yonko, Jacob

Defendant is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the First Amended Complaint (“FAC”)

Defendant Nancy Johnson demurs to the complaint in this unlawful detainer action. A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10, subds. (e), (f).) A pleading is “uncertain” if it is ambiguous and unintelligible. (*Id.* at subd. (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendant does not challenge any particular portion of the FAC, just that it is deficient, uncertain, and fails to state a cause of action for unlawful detainer. The court has carefully reviewed the FAC and the exhibits thereto. The court finds the FAC alleges facts sufficient to support a cause of action for unlawful detainer. The demurrer to the FAC is overruled.

Defendant shall file and serve an answer by May 11, 2026.

4. S-CV-0046823 Casey, Michael P v. Patrick, Sean

The motion to correct clerk’s record after transfer is continued to be heard on **May 12, 2026 at 8:30 a.m. in Department 42** to be heard together with another motion.

5. S-CV-0047142 Leibundguth, Brian v. Schockley, Richea

This tentative ruling is issued by the **Honorable Charles D. Wachob**. If oral argument is timely requested, it will be heard on **Wednesday, May 13, 2026 at 8:30 a.m. in Department 2**. Department 2 is located at 101 Maple Street, Auburn, California 95603.

Plaintiff's Motion For New Trial

Plaintiff Brian Leibundguth moves for new trial after the jury found defendant Richea Schockley was not negligent in causing the accident from which plaintiff claimed injuries after being struck by defendant's motor vehicle while he was riding his bicycle.

Plaintiff alleges several statutory grounds in support of his motion. First, plaintiff contends the evidence was insufficient to support the verdict. (Code of Civil Procedure section 657(6).) Specifically, plaintiff contends a new trial should be granted because "the evidence is uncontroverted that Defendant negligently caused the collision." However, "[a] new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict or other decision, nor upon the ground of excessive or inadequate damages, unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court or jury *clearly* should have reached a different verdict or decision." (Code of Civil Procedure section 657; emphasis added.)

In this case the evidence was hardly uncontroverted in favor of plaintiff. For example, the evidence included plaintiff's admission that he did not come to a full stop at the stop sign on his bicycle before entering the intersection and that he then accelerated rapidly to 15 to 20 miles an hour before impacting defendant's vehicle. (Leibundguth testimony; RT 28-29.) Both accident reconstruction experts agreed the collision would not have occurred if plaintiff had stopped for at least 1.9 seconds before entering the intersection. Whether defendant was negligent under all of the circumstances was a factual matter to be determined by the jury. Taking into account all of the disputed evidence, it cannot be fairly concluded that the jury clearly should have reached a different verdict.

Plaintiff's second contention is that a new trial should be granted because the verdict was against law because "the jurors ignored the jury instructions." A new trial may be granted on the ground that the verdict or other decision is against law. (Code of Civil Procedure section 657, subd. (6).) "Although the meaning of the phrase "against law" is not entirely clear, a verdict is said to be "against the law" for purposes of a motion for a new trial where the evidence is insufficient in law and without conflict on any material point or when it is contrary to the instructions given the jury." (47 Cal.Jur.3d New Trial § 60.) A verdict can be "against law" only: (1) when there is a failure to find on a material issue; (2) when the findings are irreconcilable; and (3) when the evidence is insufficient in law and without conflict in any material point. (*Tagney v. Hoy* (1968) 260 Cal.App.2d 372, 375-376; *McCown v. Spencer* (1970) 8 Cal.App.3d 216, 229.) This ground for new trial is distinct from insufficiency of the evidence, which is a separate

statutory basis under California Code of Civil Procedure section 657(6). (*Sanchez-Corea v. Bank of America* (1985) 38 Cal.3d 892, 215.)

Plaintiff appears to argue that the evidence at trial was insufficient in law and without conflict as to defendant's negligence. As already indicated, there certainly was conflicting evidence as to which party's alleged negligence caused the bicycle vs. automobile collision. The specific focus of plaintiff's argument on this point is that "the jury did not follow jury instruction 418B" in reaching its verdict in favor of defendant. That instruction provides that negligence can sometimes be presumed in the event of a violation of Vehicle Code section 21802. Without reciting the entire statute, it generally provides that a motorist who has approached and stopped at an intersection must yield the right of way to any vehicles that have approached from another highway, or which are approaching so closely as to constitute an immediate hazard, before proceeding to enter the intersection. Plaintiff makes a similar argument regarding Instruction 418C which is based on Vehicle Code section 21804.

What plaintiff fails to focus on with regard to either of these instructions is that the jury cannot find that a violation of statute constitutes negligence unless it finds the violation was a substantial factor in bringing about the accident. Here, there was conflicting evidence as to whether defendant's alleged violation was a substantial factor in bringing about the accident. In focusing on Instructions 418B and 418C, plaintiff overlooks the preceding instruction given to the jury. Based primarily on Vehicle Code section 22450(a), Instruction 418A generally provides that a motorist or bicyclist approaching an intersection must stop at the limit line before entering the intersection. The instruction specifically provides that "a rolling stop or failure to come to a complete cessation of movement" violates the statute. The instruction allowed the jury to find that plaintiff himself was negligent if it found that he violated the statute and that the violation was a substantial factor in bringing about the accident. In that regard, there was no dispute in the evidence that plaintiff failed to come to a complete stop before entering the intersection and that he then accelerated to between 15 to 20 miles per hour before colliding with defendant's vehicle. The evidence showed that defendant stopped at the limit line, recognized there was a visibility obstruction caused by a stone monument, then moved forward to a second viewpoint at the "gutter line" where she stopped again. She testified she looked in both directions and yielded to a left-turning vehicle before proceeding into the intersection at a low speed of three to five miles per hour when the front left side of her vehicle was struck by the plaintiff bicycle rider. The jury was within its rights to conclude that plaintiff acted reasonably under the circumstances and, further, that plaintiff's own statutory violation was a substantial factor in causing the accident. The jury could conclude from the circumstances that plaintiff failed to prove that negligence on the part of defendant should be presumed under Instructions 418B and 418C.

Plaintiff's contention that the jury failed to follow the instructions also overlooks that the jury was instructed that it could determine the credibility and weight of witness testimony, and that it could determine from the evidence that some instructions may not be applicable depending on its findings from the evidence. The jury is presumed to

follow the directions it is given. (*Cassim v. Allstate Ins. Co.* (2004) 33 Cal.4th 780, 803.) Taking into account all of the jury instructions given and the conflicting evidence as to negligence, plaintiff has not shown that the jury failed to follow the instructions such that a new trial would be warranted.

Plaintiff's third argument is that defense counsel Houvener "committed egregious misconduct." Misconduct of counsel is an "[i]rregularity in the proceedings of the court, jury or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial." (Code of Civil Procedure section 657(1); *City of Los Angeles v. Decker* (1977) 18 Cal.3d 860, 870.) An "irregularity of the proceedings" allowing a new trial is a catch-all phrase "referring to any act that (1) violates the right of a party to a fair trial and (2) which a party 'cannot fully present by exceptions taken during the progress of the trial, and which must therefore appear by affidavits.'" (*Montoya v. Barragan* (2013) 220 Cal.App.4th 1215, 1229–30.) Attorney misconduct can justify a new trial only if it is reasonably probable that the party moving for a new trial would have obtained a more favorable result absent the misconduct. (*Bell v. Bayerische Motoren Werke Aktiengesellschaft* (2010) 181 Cal.App.4th 1108, 1122; *Cassim v. Allstate Ins. Co.* (2004) 33 Cal.4th 780, 801–802.)

Plaintiff points to several comments made by defense counsel in closing argument regarding the financial status of plaintiff, including statements regarding his annual income, vacations that plaintiff and his family took, and that plaintiff's home had HOA access to a pool and gym. Plaintiff essentially argues that such comments were made to improperly prejudice the jury against him due to his wealth or financial status. On the other hand, defendant argues the comments were appropriate to counter plaintiff's claims regarding "loss of enjoyment of life" and the extent of his alleged physical limitations. Defense counsel's comments on those matters were derived from evidence in the record and not improper to mention for that purpose during closing argument.

Plaintiff also contends it was prejudicial misconduct for defense counsel to point out that his client should not be held responsible to pay for the multi-million dollar award being sought by plaintiff. This was not an unfairly prejudicial comment when considered in light of the entire context of the evidence presented at trial. Plaintiff also contends that defense counsel intentionally mispronounced plaintiff's last name to unfairly imply that plaintiff lied. This claim is not well taken. Looking past the fact that credibility of the parties was at issue, the court does not believe the mispronunciations had any meaningful impact on the jury's finding that defendant's driving did not bring about the collision. Plaintiff also contends defense counsel's use of the phrase "pigs get fed, hogs get slaughtered" in his argument on damages was another facet of misconduct. The proverb is usually taken to mean that moderation is good while greed can have negative consequences. While this phrase certainly may not have been the best or most sensitive way for counsel to suggest that plaintiff was overreaching in his damages claim, it does not constitute a ground for granting a new trial.

The court also notes that plaintiff's counsel did not timely object to all of the allegedly improper statements made by defense counsel during his closing argument. Additionally,

the court notes that the jury was instructed—both before and after evidence was presented—that the statements and arguments of counsel are not evidence. (CACI 101, 3925, 5002.) The jury also was instructed that the wealth or poverty of the parties was not to be considered. (CACI 117.) It is presumed the jury followed these instructions.

Having considered plaintiff's arguments on these points, and the totality of the circumstances at trial, the court cannot reasonably conclude that it is reasonably probable that plaintiff would have obtained a more favorable result in the absence of the remarks and/or mispronunciations made by defendant in his closing argument. Taken together, the statements by defense counsel did not prevent plaintiff from having a fair trial.

Plaintiff's fourth argument is that admission of the "no stop" simulation and a sub rosa video amounted to prejudicial error. Defense reconstruction expert Fatzinger created several simulations depicting how the collision might have occurred. Plaintiff argues there was no factual underpinning to support Fatzinger's simulation which depicted plaintiff riding his bicycle through the intersection without stopping, at a speed of approximately 17 miles per hour. Plaintiff contends this "no-stop" simulation "created confusion about the sequence of events that led up to the collision." However, Fatzinger's presentation was based on plaintiff's own testimony that he failed to come to a complete stop before entering the intersection and on a text message sent by plaintiff's wife stating that plaintiff "never came to a complete stop." Plaintiff also provided testimony that at the time of the collision he had accelerated in the intersection to a speed between 15 to 20 miles per hour. As the court found at trial, these facts provided a sufficient basis for Fatzinger's simulation. Even so, the jury was instructed that it did not have to accept an expert's opinion and that it should consider the facts upon which an expert based an opinion. (CACI 219.) There is no reason to conclude that the jury ignored these instructions or that it did not consider all of the evidence at trial aside from Fatzinger's depiction of the accident.

Plaintiff contends the court should not have admitted a sub rosa video obtained by a defense investigator which showed plaintiff working out at his HOA's gym, during which he used a rowing machine and did bar dips. Plaintiff brought a motion in limine seeking to exclude the investigator's sub rosa video on the ground that the investigator had violated plaintiff's right of privacy. Plaintiff requested a hearing under Evidence Code section 402. The court granted the request in order to determine the preliminary fact of whether plaintiff's privacy rights had been violated to an extent such that exclusion of the video would be appropriate. After following plaintiff to the gym, the investigator testified he saw a man near the entrance to the gym wearing a high-visibility vest, whom the investigator believed was a maintenance worker. He caught the attention of the man and then falsely represented to him that he had forgotten his fob to gain entry into the gym. The man allowed the investigator to enter the building with him, and even gave him a tour of the building, including the locker room and pool area. The investigator then went to the large workout area and was then able to set up his camera inside of a hat, capturing plaintiff exercising on various exercise equipment. The evidence also showed other persons were exercising in the gym during the time the investigator was present. Persons in the gym exercised on equipment that was open and visible from other parts of

the gym. The video, as well as the testimony of the investigator, also established that the gym was fairly large, with large glass windows alongside the entire front of the gym. The windowed area was visible from the adjoining parking lot. Plaintiff exercised on a rowing machine and did bar dips in front of the windowed area visible from the parking lot. The investigator testified “I would say everywhere in that gym is visible from the parking lot.” (Allman testimony, 24:7–11.) No private conversations were recorded, and no confidential information of plaintiff was obtained by the investigator by way of the video.

The essential question presented to the court was whether there was an objectively reasonable expectation of privacy under the circumstances and, if so, whether any alleged invasion of privacy was serious enough to justify exclusion of the sub rosa video. Among other things, the court noted the evidence showed others were exercising in the large gym area, and that a bank of large windows fronted the building which were visible from the adjoining parking lot. Under all of the circumstances, the court essentially determined there was no objectively reasonable expectation of privacy for a person working out in the gym. Nor did the totality of circumstances support that there was a serious invasion of privacy, even though plaintiff himself may have subjectively felt otherwise. Finally, pursuant to Evidence Code section 352, the court also weighed the potential prejudicial effect of the video against its probative value of showing plaintiff’s physical condition. The court found the video was not excluded under section 352. In denying plaintiff’s motion in limine the court told counsel “That doesn’t mean that the video is admissible or the testimony of the investigator is admissible” and that the video was still subject to normal foundation requirements. The admission of the video did not prevent plaintiff from having a fair trial, especially since the video had more to do with plaintiff’s claimed injuries than with the underlying question of who caused the collision.

For all of the above reasons, plaintiff’s motion for new trial is denied.

Plaintiff’s JNOV Motion

Plaintiff moves for judgment notwithstanding the verdict. Plaintiff asks the court to grant judgment notwithstanding the verdict in favor of plaintiff on the issue of liability and to grant plaintiff a new trial on the issue of damages.

The trial judge cannot weigh the evidence or determine the credibility of witnesses on JNOV motions. (*Hauter v. Zogarts* (1975) 14 Cal.3d 104, 110.) Conflicting evidence is resolved against the moving party. The party in whose favor the verdict was rendered is “entitled to the benefit of every favorable inference which may reasonably be drawn from the evidence and to have all conflicts in the evidence resolved in his favor.” (California Practice Guide--Civil Trials and Evidence, 18:55.) A JNOV motion “may be granted only if it appears from the evidence, viewed in the light most favorable to the party securing the verdict, that there is no substantial evidence in support.” (*Sweatman v. Department of Veterans Affairs* (2001) 25 Cal.4th 62, 68; *Wolf v. Walt Disney Pictures & Television* (2008) 162 Cal.App.4th 1107, 1137–1138.)

With the above standards in mind, and viewing the evidence in the light most favorable to defendant and drawing all reasonable inferences in defendant's favor, the court finds there is substantial evidence to support the jury's verdict. Plaintiff's motion for judgment notwithstanding the verdict is denied.

6. S-CV-0050979 Pearson, James v. Kaiser Found. Hospitals

The motion for summary judgment or, in the alternative, summary adjudication is continued to be heard on **June 30, 2026 at 8:30 a.m. in Department 42**. No further briefing is permitted. The court apologizes to the parties for any inconvenience.

7. S-CV-0051367 Brown, Maurice v. ClearCaptions

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Amended Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties' class action and PAGA settlement. No opposition has been filed.

The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699(l); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully considered the class action and PAGA settlement agreement and plaintiff's amended moving papers filed in connection with the motion, as well as the entire court file. The court determines a sufficient showing has been made that the settlement is fair, reasonable, genuine, meaningful, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class for the purposes of settlement as, "all individuals who are or were employed by Defendants as non-exempt employees in California during the Class Period" of October 4, 2019 through October 6, 2024.

The court preliminarily approves the class action and PAGA action settlement agreement attached as Exhibit A to the amended declaration of counsel Jonathan Melmed. The court also approves the proposed form of the notice attached as Exhibit 1 to the to Exhibit A of the amended declaration of counsel Melmed with two changes: on page 4, the Settlement

Administration Costs are listed as “up to \$30,000,” and shall be amended to “\$5,990.” With this change, the proposed form of notice is approved.

The court appoints and designates Maurice Brown as the class representative. The court appoints and designates Jonathan Melmed and Laura M. Supanich of Melmed Law Group PC as class counsel for the purpose of settlement. The court appoints and designates Apex Class Action Administration as the settlement administrator. The court also incorporates by reference all findings and orders set forth in the Proposed Order submitted in connection with the instant motion, except paragraph 1.e. is amended from \$30,000 to \$5,990.

The final approval hearing is scheduled for **November 3, 2026 at 8:30 a.m. in Department 42**. The motion for final approval shall be filed and served in accordance with Code of Civil Procedure section 1005(b).

8. S-CV-0051899 Taylor, Elijah Jett v. White, Jeanne Evelyn

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor’s compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

9. S-CV-0053067 Illingworth, Jordan v. Luxottica of America

Moving party is advised the notice of motion must include the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to be relieved as counsel

The motion to be relieved as counsel for plaintiff is granted, effective upon the filing of a proof of service of the signed order on all parties.

10. S-CV-0053507 Illingworth, Jordan v. Luxottica of America

Moving party is advised the notice of motion must include the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to be relieved as counsel

The motion to be relieved as counsel for plaintiff is granted, effective upon the filing of a proof of service of the signed order on all parties.

11. S-CV-0053711 City of Lincoln v. The Gathering Inn

Demurrer to the Amended Answer to the Second Amended Complaint (“SAC”)

Plaintiff demurs to The Gathering Inn (“TGI”)’s first through eighth affirmative defenses in its first amended answer to the SAC, contending each affirmative defense fails to state facts sufficient to constitute a defense. (Code Civ. Proc., § 430.20, subd. (a).) TGI opposes the demurrer.

Plaintiff’s unopposed request for judicial notice is granted. The court on its own motion takes judicial notice of the fact that no cross-complaint has been filed in this action.

A plaintiff may demur to an answer when “[t]he answer does not state facts sufficient to constitute a defense.” (Code Civ. Proc., § 430.20, subd. (a).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Throughout its moving papers, plaintiff argues several of defendant’s affirmative defenses fail because of the amended answer’s failure to plead facts showing administrative exhaustion. Administrative exhaustion is a jurisdictional prerequisite for judicial review. (See, e.g., *Tejon Real Estate LLC v. City of Los Angeles* (2014) 223 Cal.App.4th 149, 156.) However, jurisdiction will not attach to the administrative body if administrative proceedings are not engaged. (*Eye Dog Foundation v. State Board of Guide Dogs for Blind* (1967) 67 Cal.2d 536, 543–44.) Here, plaintiff’s SAC and defendant’s amended answer do not allege any facts that plaintiff invoked administrative proceedings but rather initiated this lawsuit. Jurisdiction, therefore, did not attach to the administrative body by way of code enforcement and thus neither party was required to exhaust administrative remedies. This argument is not a basis on which to sustain the demurrer.

Plaintiff demurs to TGI’s first affirmative defense for unlawful discrimination and sixth affirmative defense for selective enforcement and prosecution fail because neither provides a defense to nuisance, the only cause of action remaining in the SAC, and because “[a]ffirmative relief may not be claimed in the answer.” (Code Civ. Proc., § 431.30, subd. (c).) In opposition, TGI relies on *City of Bakersfield v. Miller* (1966) 64 Cal.2d 93 as an example of a nuisance case where defendant claimed that city officials discriminated against the defendant in enforcing a local ordinance. However, the *Miller* case is distinguished as the defendant there had filed a cross-complaint. Here, of course, TGI has elected to not file any cross-complaint. TGI relies on other cases that are distinguished from this case, such as *Murgia v. Muni. Court for Bakersfield Jud. Dist.*

(1975) 15 Cal.3d 286, a writ of mandate case arising from a criminal misdemeanor action. As affirmative relief may not be claimed by way of answer and defendant presents no case law requiring a different result, the demurrer is sustained as to the first and sixth affirmative defenses.

Plaintiff demurs to TGI's second affirmative defense for receipt of state funds pursuant to Welfare and Institutions Code section 18999.97, which exempts projects that receive funds pursuant to Section 18999.97 from land use and zoning requirements, because the court's ruling sustaining without leave TGI's demurrer to the declaratory relief claim rendered the argument of whether TGI is a "qualified grantee" that received funds "pursuant to" this section outside of the court's jurisdiction. Plaintiff also contends it has the right to exercise its police powers and enforce all of its codes within its territory and TGI's arguments that it received funds "pursuant to" Section 18999.97 and the City may not require a Conditional Use Permit is a legal conclusion. Plaintiff's arguments are inconsistent and it appears the issues of whether TGI is a qualified grantee and whether TGI received funds pursuant to Section 18999.97 remain at issue for the nuisance cause of action. The demurrer is overruled as to the second affirmative defense.

Plaintiff demurs to the third affirmative defense for public and third-party interests against injunctive relief, contending that because a legislative body has enacted Lincoln Municipal Code section 8.08.050 defining a violation of the Building Code to be a public nuisance, the legislative body "has already determined that such activity is contrary to the public interest," *IT Corp. v. County of Imperial* (1983) 35 Cal.3d 63, 70, and alleged harm to the public or third parties is not relevant, much less an affirmative defense to the nuisance cause of action. This argument is too narrow, as the court must "consider all relevant evidence in determining whether, and to what extent, an injunction is the appropriate remedy for the wrong established." (*People ex rel. Burns v. Wood* (2024) 103 Cal.App.5th 700, 705.) "Not every finding of nuisance will warrant an injunction. To be enjoined, a nuisance must be both substantial and unreasonable. [Citation.]" (*Id.* at pp. 711–12, citation omitted.) The demurrer is overruled as to the third affirmative defense.

Plaintiff demurs to the fourth affirmative defense for fair notice and opportunity to correct and the fifth affirmative defense for violation of City Code Enforcement policies and procedures arguing the law allows any party, including a city to bring an action to abate a public nuisance and nothing in the law requires a plaintiff to give notice and an opportunity to cure. Code of Civil Procedure section 731 provides, in pertinent part: "A civil action may be brought in the name of the people of the State of California to abate a public nuisance, as defined in Section 3480 of the Civil Code, by the district attorney or county counsel of any county in which the nuisance exists, or by the city attorney of any town or city in which the nuisance exists. Each of those officers shall have concurrent right to bring an action for a public nuisance existing within a town or city." In its opposition, TGI raises the issue of knowledge of the nuisance for successor owners pursuant to case law and Civil Code section 3483. While plaintiff argues in its reply brief that because Civil Code section 3483 is not pleaded in the first amended answer it should be dismissed and stricken. However, as these facts are clearly raised in the amended

answer, this argument lacks merit. The demurrer is overruled as to the fourth and fifth affirmative defenses.

Plaintiff demurs to the seventh affirmative defense for mootness. Plaintiff points out that while TGI alleges the request for injunctive relief is or will be moot by trial, TGI also argues that it is addressing those Code violations. (Amended answer, ¶¶ 140, 143, 297.) While plaintiff is correct the allegations, when taken as a whole, do not adequately allege plaintiff's claim is moot, it does adequately allege the claim may become moot by trial. The demurrer is overruled as to the seventh affirmative defense.

Plaintiff demurs to the eighth affirmative defense for inequitable conduct because once the local legislative body declares an act to be a nuisance per se, no further proof is required. (*City of Costa Mesa v. Soffer* (1992) 11 Cal.App.4th 378, 382.) However, this argument is too narrow for the same reasons as the court notes above for the third affirmative defense. The demurrer is overruled as to the eighth affirmative defense.

Based on the foregoing, the demurrer to the first amended answer to the SAC is sustained as to the first and sixth affirmative defenses and otherwise overruled. Defendant bears the burden of demonstrating how its amended answer may be amended to cure the defects therein. (*Jensen v. The Home Depot, Inc.* (2018) 24 Cal.App.5th 92, 97.) Defendant falls short of its burden of showing the defects are curable. Accordingly, leave to amend is denied.

Motion to Strike Affirmative Defenses

Plaintiff moves to strike The Gathering Inn ("TGI")'s first through eighth affirmative defenses and factual allegations commencing at paragraph 236 of TGI's first amended answer to the second amended complaint. (Code Civ. Proc., §§ 435, 436.)

Plaintiff's motion to strike is denied as moot as to the first and sixth affirmative defenses in light of the court's above ruling on the demurrer. Plaintiff's motion to strike is denied as to the second, third, fourth, seventh, and eighth affirmative defenses and as to the factual allegations beginning at paragraph 236 for the same reasons as outlined in the court's above ruling on the demurrer. This includes the factual allegations at paragraphs 267 through 274 and 296 through 297 (the facts supporting the affirmative defenses on which the demurrer is sustained) because these factual allegations are incorporated by reference to other affirmative defenses.

Plaintiff's motion to strike is denied in its entirety.

12. S-CV-0053821 Urbina, Eden v. TimCo Construction Inc.

Moving party is advised the notice of motion must include the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to be relieved as counsel

The motion to be relieved as counsel for plaintiff is granted, effective upon the filing of a proof of service of the signed order on all parties.

13. S-CV-0054125 Servantez, Angelina v. PCJV USA

Moving party is advised the notice of motion must include the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to be relieved as counsel

The motion to be relieved as counsel for plaintiff is granted, effective upon the filing of a proof of service of the signed order on all parties.

14. S-CV-0054343 Hall, Linda Leon v. Helmer, Virgil Alan

Motion to set aside the December 15, 2025 order granting ex parte application

Defendant Virgil Alan Helmer moves to set aside the court's December 15, 2025 order granting plaintiff's ex parte application. Plaintiff did not file a response.

Defendant failed to file a responsive pleading in this action after service of the summons and complaint, and his default was entered on March 18, 2025. Entry of default cuts off defendant's right to appear in this action and participate in the proceedings, unless and until the default is set aside. (*Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155 Cal.App.3d 381, 385-386.) Even if the court could consider defendant's motion, which it cannot in light of his default, he fails to demonstrate service. All moving papers and supporting documents shall be served and filed at least 16 court days before the hearing, with notice extended based on the manner of service. (Code Civ. Proc., §§ 1005(b), 1010.6.) Based on the foregoing, the motion is denied.

15. S-CV-0056119 Ismail, Sellam v. Jang DDS Inc.

Demurrer to the Complaint

Defendant Jang DDS Incorporated dba Smile Time Dental demurs to the second through sixth causes of action alleged in the complaint pursuant to Code of Civil Procedure section 430.10(e) on the grounds each cause of action fails to allege sufficient facts to constitute valid claims. Additionally, defendant states plaintiff's fifth cause of action for violation of Business and Professions Code § 17200 - Unfair Competition is ambiguous

and unintelligible. Defendant also moves to strike the claim for punitive damages. Plaintiff opposes the demurrer and motion to strike.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10, subds. (e), (f).) A pleading is “uncertain” if it is ambiguous and unintelligible. (*Id.* at subd. (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Breach of Contract

Plaintiff’s second cause of action alleges breach of contract. To state a cause of action for breach of contract, plaintiff must plead the existence of a contract, his performance of the contract or excuse for nonperformance, defendant’s breach and resulting damage. Where the existence of a written contract is alleged, plaintiff must attach and incorporate by reference a copy of the written agreement, or set out the terms verbatim. (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 307.)

Plaintiff alleges, “On or about September 27, 2024, Plaintiff had a scheduled appointment at Defendant Smile Time Dental’s office in Rocklin, California, at 1:00 p.m. for the installation of a dental crown and to address the cracked tooth. Plaintiff was directed to check in via a computer terminal, requiring electronic acknowledgment of a form with statements plaintiff could not agree to, including confirmation that the fit of the uninstalled crown was satisfactory and acknowledgment of information not yet received. These clauses were impossible to affirm prior to receiving services. Plaintiff raised concerns with the receptionist, noting a similar issue during a prior visit where offending clauses were removed to allow signing. The receptionist initially offered to print the form for manual edits but later claimed she could not. She contacted the office owner, who was reportedly ‘in a meeting,’ and informed Plaintiff that services would not be provided without signing the form. An implied or express contract existed between Plaintiff and defendants for dental services, including the crown procedure and treatment of the infected tooth, based on the scheduled appointment, prior visits, and prescription of antibiotics. Plaintiff performed all obligations, including arriving on time and taking prescribed medication. defendants breached by denying service, canceling the appointment without cause, failing to treat the infected tooth, and terminating the relationship, which contributed to Plaintiff’s stroke and cancellation of hernia surgery. As a proximate result, Plaintiff suffered damages in an amount to be proven at trial.” (Complaint ¶¶ 9, 11-12, 29-32.)

The Court of Appeal has outlined how a party may show the existence of an enforceable contract:

Under California law, a contract will be enforced if it is sufficiently definite (and this is a question of law) for the court to ascertain the parties' obligations and to determine whether those obligations have been performed or breached." (*Ersa Grae Corp. v. Fluor Corp.* (1991) 1 Cal.App.4th 613, 623.) "To be enforceable, a promise must be definite enough that a court can determine the scope of the duty[,] and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 770; *Robinson & Wilson, Inc. v. Stone* (1973) 35 Cal.App.3d 396, 407.) "Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable." (*Cal. Lettuce Growers v. Union Sugar Co.* (1955) 45 Cal.2d 474, 481, 289 P.2d 785; Civ. Code, § 1598; see also *Ladas, supra*, 19 Cal.App.4th at p. 770.) "The terms of a contract are reasonably certain if they provide a basis for determining the existence of a breach and for giving an appropriate remedy." (Rest.2d Contracts, § 33, subd. (2); (accord *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 811.) But "[i]f ... a supposed 'contract' does not provide a basis for determining what obligations the parties have agreed to, and hence does not make possible a determination of whether those agreed obligations have been breached, there is no contract." (*Weddington Productions, Inc.*, *supra*, 60 Cal.App.4th at p. 811.)

Bustamante v. Intuit, Inc. (2006) 141 Cal.App.4th 199, 209.

Plaintiff has not pled the terms of the alleged contract; plaintiff's performance or excused nonperformance; and plaintiff has not linked the alleged damages to defendant's conduct.

As to the second cause of action for breach of contract, the demurrer is sustained.

Fraud

Plaintiff's third cause of action alleges fraud. To establish a fraud claim, plaintiff must allege (1) misrepresentation, (2) knowledge of falsity, (3) intent to defraud or induce reliance, (4) justifiable reliance, and (5) resulting damage. (See *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974.) Each element must be pled with specificity. (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184.) "The particularity demands that a plaintiff pleads facts which show how, when, where, to whom, and by what means the representations were tendered." (*Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1469.) Plaintiff fails to allege all elements of his fraud claim with specificity. Further, as pled this claim is uncertain. As to the third cause of action for fraud, the demurrer is sustained.

Intentional Infliction of Emotional Distress

Plaintiff's fourth cause of action alleges intentional infliction of emotional distress. Plaintiff must allege "extreme and outrageous conduct," meaning conduct "so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Schlauch v. Hartford Acc. & Indemnity Co.* (1983) 146 Cal.App.3d 926, 936.) Plaintiff must also allege that he suffered severe or extreme emotional distress as a result of the defendant's conduct. This distress must be significant and not trivial or fleeting. (*Safechuck v. MJJ Productions, Inc.* (2023) 94 Cal.App.5th 675, 697.) Here, plaintiff fails to allege extreme and outrageous conduct "so extreme as to exceed all bounds of that usually tolerated in a civilized community." Further, plaintiff fails to allege facts supporting the contention that he suffered severe or extreme emotional distress as a result of defendant's actions. As to the fourth cause of action for intentional infliction of emotional distress, the demurrer is sustained.

Violation of Bus. & Prof Code § 17200

Defendant states plaintiff's fifth cause of action for violation of Business and Professions Code § 17200 is ambiguous, unintelligible, and fails to allege facts sufficient to constitute this cause of action.

Plaintiff alleges, "Defendants engaged in unlawful, unfair, and fraudulent business practices, including deceptive forms, denial of care, failure to treat an infected tooth to be a violation of the Dental Practice Act (Bus. & Prof Code § 1680), and retaliation, harming plaintiff (including causing or contributing to the stroke and cancellation of hernia surgery) and the public. Plaintiff seeks injunctive relief, restitution, and attorney fees (if applicable). (Complaint ¶¶ 44-45.)

"[A]n action under the Unfair Competition Law (UCL) 'is not an all-purpose substitute for a tort or contract action ... Prevailing plaintiffs are generally limited to injunctive relief and restitution. [Citations.] Plaintiffs may not receive damages ... or attorney fees.'" (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 179.) "Restitution under [BPC] section 17203 is confined to restoration of any interest in 'money or property, real or personal, which may have been acquire by means of such unfair competition.' A restitution order against a defendant thus requires both that money or property have been lost by a plaintiff, on the one hand, and that it have been acquired by a defendant, on the other." (*Zhang v. Superior Court* (2013) 57 Cal.4th 364, 371.)

Plaintiff fails to allege sufficient facts showing a causal link between the alleged UCL violations and the injury to plaintiff. As plaintiff's complaint fails to allege a loss of money or property by plaintiff or a gain of money or property by defendant, plaintiff would have no equitable recovery. It is similarly unclear what injunctive relief is sought.

As to the fifth cause of action for violation of Business and Professions Code § 17200, the demurrer is sustained.

Breach of Fiduciary Duty

The elements of a breach of fiduciary duty claim are “the existence of a fiduciary relationship, its breach, and damage proximately caused by that breach.” (*Meister v. Mensinger* (2014) 230 Cal.App.4th 381, 395.)

The complaint alleges plaintiff arrived for a dental appointment, refused to sign the requested form, and had future services cancelled. (Complaint ¶¶ 44-45.) These allegations are insufficient to plead the elements of a claim for breach of fiduciary duty.

As to the sixth cause of action for breach of fiduciary duty, defendant’s demurrer is sustained.

Defendant’s motion to strike

Prayer for punitive damages

Defendant moves to strike the prayer for punitive damages.

Punitive damages are recoverable in fraud actions which allege fraud by concealment of material facts. (*Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1241; *Notrica v. State Comp. Ins. Fund* (1999) 70 Cal.App.4th 911, 946-947.) Furthermore, plaintiffs need not prove all of the concealments or misrepresentations pleaded. It is adequate that the evidence supports one material fraudulent concealment or misrepresentation of fact. *Oakes v. McCarthy Co.*, 267 Cal. App. 2d 231, 261, 73 Cal. Rptr. 127 (Ct. App. 1968). The allegations of entitlement to punitive damages based on fraud cannot be read in isolation but rather must be read in the context of all of the facts alleged in the entirety of the pleading. *Clauson v. Superior Court* (1998) 67 Cal. App.4th 1253, 1255; *Perkins v. Superior Court* (1981) 117 Cal. App.3d 1, 6.).

As stated above, plaintiff fails to allege the elements of his fraud claim with specificity. Therefore, defendant’s motion to strike the prayer for punitive damages is granted.

Conclusion

In summary, defendant’s demurrer is sustained with leave to amend. Defendant’s motion to strike the prayer for punitive damages is granted. Any amended complaint shall be filed and served within ten days of service of notice of entry of order.

16. **S-CV-0056413 Redick, Marybeth v. Rodriguez, Deonna**

This tentative ruling is issued by **Commissioner Michael A. Jacques**. If oral argument is requested, it will be heard on **May 7, 2026, at 8:30 a.m. in Department 40** before Commissioner Michael A. Jacques.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorney's Fees

Respondent requests attorney's fees as the prevailing party in a civil harassment restraining order proceeding.

Petitioner filed an untimely opposition, declaration, exhibits, and a supplemental declaration. In its discretion, the court considered her filing, to the extent the documents were relevant to the question of attorney's fees.

Code of Civil Procedure section 527.6 (s) allows the prevailing party in a civil harassment restraining order action to be awarded court costs and attorney's fees. (Code Civ. Proc., § 527.6 (s).) Petitioner opposes based on the merits of the case, which is not relevant to the question of attorney's fees in a civil harassment restraining order proceeding. *Ibid*. Here, respondent was the prevailing party as the court denied petitioner's request for a civil harassment restraining order after a hearing on the merits. *Ibid*.

Respondent requests attorney's fees for over 9 hours of time spent litigating this case. (See Mot. Atty. Fees P&As.) A breakdown of time and work performed is included in the declaration submitted by respondent's counsel, which reflects 13.80 hours expended. (See Hensley Decl. Attach. A.) Respondent's counsel charges an hourly rate of \$430.00 per hour. See *id*. The court finds that the figure of \$2,532, the amount listed in the points and authorities filed concurrently with the motion, to be reasonable attorney's fees and costs.

Accordingly, the court grants respondent's motion for attorney's fees and costs to respondent, as the prevailing party, and awards \$2,532, the amount listed in the points and authorities filed concurrently with the motion.
